Privacy Policy

Effective Date: 27th May, 2025
Last Updated: 27th May, 2025

1. INTRODUCTION

Our store is committed to protecting your privacy and personal information. This Privacy Policy explains how we collect, use, store, and protect your information when you visit our website, mobile application, or use our services (collectively, the "Service").

This Privacy Policy applies to all users of our Service, including customers, artists, and visitors. By using our Service, you consent to the practices described in this Privacy Policy.

2. INFORMATION WE COLLECT

2.1 Personal Information You Provide

We collect information you voluntarily provide to us, including:

Account Information:

- Full name
- Email address
- Phone number
- Date of birth
- Username and password

Billing and Shipping Information:

- Billing address
- Shipping address
- Payment card information (processed securely through third-party payment processors)
- GST/Tax identification numbers (if applicable)

Profile Information:

- Profile picture
- Art preferences
- Biographical information (for artists)
- Social media links

Communication Information:

- Messages sent through our contact forms
- Customer service communications
- Reviews and ratings
- Newsletter subscriptions

2.2 Information Automatically Collected

When you use our Service, we automatically collect:

Device and Usage Information:

- IP address
- Browser type and version
- Operating system
- Device identifiers
- Screen resolution
- Time zone settings

Website Activity:

- Pages visited
- Time spent on pages
- Click-through rates
- Search queries
- Referral sources
- Entry and exit pages

Location Information:

- General geographic location based on IP address
- Precise location (only with your explicit consent)

2.3 Information from Third Parties

We may receive information from:

- Payment processors (transaction confirmations)
- Social media platforms (if you connect your accounts)

- Shipping partners (delivery status updates)
- Marketing partners (with your consent)
- Artists and their representatives

2.4 Cookies and Similar Technologies

We use cookies, web beacons, and similar technologies to:

- Remember your preferences
- Analyze website traffic
- Personalize content
- Improve user experience
- Enable secure transactions

Types of Cookies We Use:

- **Essential Cookies:** Required for website functionality
- **Analytics Cookies:** Help us understand how you use our Service
- **Marketing Cookies:** Used to show relevant advertisements
- **Preference Cookies:** Remember your settings and preferences

3. HOW WE USE YOUR INFORMATION

3.1 Primary Uses

We use your information to:

Provide Our Services:

- Process and fulfill orders
- Create and manage your account
- Authenticate your identity
- Facilitate payments and transactions
- Arrange shipping and delivery
- Provide customer support

Improve Our Services:

- Analyze usage patterns
- Conduct research and analytics

- Develop new features
- Optimize website performance
- Enhance user experience

Communication:

- Send order confirmations and updates
- Provide customer service
- Send newsletters (with your consent)
- Notify you of new artwork or features
- Respond to your inquiries

Marketing and Promotion:

- Send promotional emails (with your consent)
- Display personalized advertisements
- Recommend artwork based on your preferences
- Conduct marketing campaigns

Legal and Security:

- Comply with legal obligations
- Prevent fraud and abuse
- Protect against security threats
- Enforce our Terms of Service
- Resolve disputes

3.2 Legal Basis for Processing (GDPR Compliance)

We process your personal information based on:

- **Consent:** When you explicitly agree to processing
- **Contract:** To fulfill our obligations under purchase agreements
- **Legitimate Interest:** To improve our services and prevent fraud
- **Legal Obligation:** To comply with applicable laws

4. HOW WE SHARE YOUR INFORMATION

4.1 We Do Not Sell Personal Information

We do not sell, rent, or trade your personal information to third parties for monetary consideration.

4.2 Information Sharing

We may share your information with:

Service Providers:

- Payment processors (for transaction processing)
- Shipping companies (for order delivery)
- Cloud storage providers (for data hosting)
- Email service providers (for communications)
- Analytics providers (for website improvement)
- Customer support platforms

Business Partners:

- Artists whose work you purchase (limited contact information for authenticity certificates)
- Marketing partners (aggregated, anonymized data only)

Legal Requirements:

- Law enforcement agencies (when legally required)
- Government authorities (for tax compliance)
- Courts (in response to legal proceedings)
- Regulatory bodies (for compliance purposes)

Business Transfers:

- In case of merger, acquisition, or sale of assets
- During bankruptcy or insolvency proceedings

4.3 International Transfers

If we transfer your information outside India, we ensure adequate protection through:

- Standard contractual clauses
- Adequacy decisions
- Certification schemes
- Other appropriate safeguards

5. DATA SECURITY

5.1 Security Measures

We implement appropriate technical and organizational measures to protect your information:

Technical Safeguards:

- SSL/TLS encryption for data transmission
- Secure data storage with encryption at rest
- Regular security audits and vulnerability assessments
- Access controls and authentication systems
- Secure backup and recovery procedures

Organizational Safeguards:

- Employee training on data protection
- Limited access to personal information
- Confidentiality agreements with staff
- Regular security policy reviews
- Incident response procedures

5.2 Payment Security

- We use PCI DSS compliant payment processors
- We do not store complete payment card information
- All payment data is encrypted during transmission
- Two-factor authentication for account access (where available)

6. YOUR RIGHTS AND CHOICES

6.1 Access and Control

You have the right to:

- Access your personal information
- Correct inaccurate information
- Delete your personal information (subject to legal requirements)
- Restrict processing of your information

- Object to processing of your information
- Data portability (receive your data in a structured format)

6.2 Communication Preferences

You can:

- Unsubscribe from marketing emails
- Update notification preferences
- Opt out of promotional communications
- Manage cookie preferences

6.3 Account Management

- Update your account information
- Change your password
- Delete your account (some information may be retained for legal compliance)

6.4 How to Exercise Your Rights

Contact us at suryansh.mishra.sm6@gmail.com or through our customer service to exercise your rights. We will respond within 30 days of receiving your request.

7. DATA RETENTION

7.1 Retention Periods

We retain your information for as long as necessary to:

- Provide our services
- Comply with legal obligations
- Resolve disputes
- Enforce our agreements

Specific Retention Periods:

- Account information: Until account deletion plus 3 years
- Transaction records: 7 years (for tax and legal compliance)
- Marketing data: Until you opt out plus 2 years
- Website analytics: 26 months
- Customer service records: 3 years

7.2 Deletion

When retention periods expire, we securely delete or anonymize your information unless legal requirements mandate longer retention.

8. CHILDREN'S PRIVACY

Our Service is not intended for children under 18 years of age. We do not knowingly collect personal information from children under 18. If we become aware that we have collected information from a child under 18, we will take steps to delete such information.

9. THIRD-PARTY LINKS AND SERVICES

Our Service may contain links to third-party websites or integrate with third-party services. This Privacy Policy does not apply to such third parties. We encourage you to read their privacy policies before providing any information.

10. COMPLIANCE WITH INDIAN LAWS

10.1 Information Technology Act, 2000

We comply with the Information Technology Act, 2000, and the Information Technology (Reasonable Security Practices and Procedures and Sensitive Personal Data or Information) Rules, 2011.

10.2 Digital Personal Data Protection Act, 2023

We are committed to complying with the Digital Personal Data Protection Act, 2023, once it comes into full effect.

10.3 Other Applicable Laws

We also comply with:

- Consumer Protection Act, 2019
- Goods and Services Tax laws
- Foreign Exchange Management Act (for international transactions)

11. INTERNATIONAL COMPLIANCE

11.1 GDPR (European Users)

For users in the European Union, we comply with the General Data Protection Regulation (GDPR) and provide additional rights as required.

11.2 Other Jurisdictions

We strive to comply with applicable privacy laws in jurisdictions where our users are located.

12. UPDATES TO THIS PRIVACY POLICY

We may update this Privacy Policy periodically to reflect changes in our practices or applicable laws. We will:

- Post the updated Privacy Policy on our website
- Update the "Last Updated" date
- Notify you of material changes via email or website notice
- Obtain your consent for material changes where required by law

13. CONTACT INFORMATION

13.1 Privacy Questions

For questions about this Privacy Policy or our privacy practices, contact us at:

Privacy Officer
Email: suryansh.mishra.sm6@gmail.com
Links: linktr.ee/mishrasuryansh

13.2 Data Protection Officer

If required by law, we will appoint a Data Protection Officer. Contact details will be provided here when applicable.

13.3 Complaints

If you have concerns about our handling of your personal information, you may:

- Contact us directly using the information above
- File a complaint with relevant data protection authorities
- Approach consumer forums or courts as per Indian law

14. DEFINITIONS

- **Personal Information:** Any information that identifies or can be used to identify an individual
- **Sensitive Personal Information:** Passwords, financial information, health information, sexual orientation, medical records, and biometric information
- **Processing:** Any operation performed on personal information, including collection, storage, use, and deletion

- **Data Controller:** The entity that determines the purposes and means of processing personal information
- **Data Processor:** The entity that processes personal information on behalf of the data controller

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By using our Service, you acknowledge that you have read, understood, and agree to this Privacy Policy.

For your convenience, we provide this Privacy Policy in multiple languages. In case of conflicts between versions, the English version shall prevail.